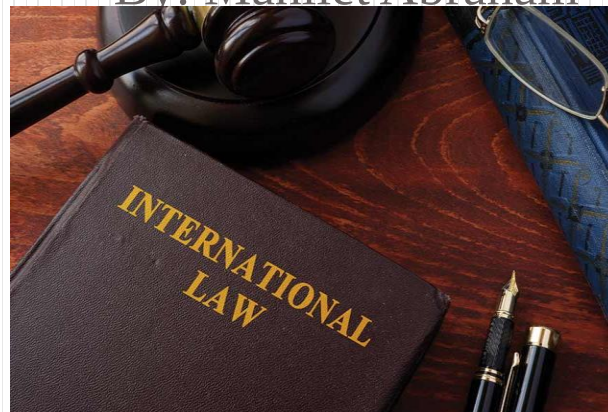


Public International Law

Chapter Four
Subjects of International Law
By: Mahilet Abraham



The Concepts of Legal Personality and Subjects of International Law

- ***International Legal Personality***
- It is an vital feature of international law that has advanced throughout history as a means of international representation and capacity to contract and institute international legal proceedings.
- ***Subjects of International Law***
- Public international law is that system of law which is primarily concerned with the relations between states.
- The system is composed of subjects enjoying legal personality to a greater or lesser amount.

Continued

- A subject of international law can be defined as an entity capable of possessing international rights and duties and having capacity to protect its rights by bringing international claims.
- It means different entities which possess international personality.
- It does not mean different types of international law.
- It simply means the entities which have rights and power conferred in international law.

Continued

- Traditionally it was a state that was a sole subject of international law.
- However, it is accepted today that the subject extends to rights and duties pertaining to international organizations, companies and individuals.
- There are mainly 7 subjects of international law.
 1. **States**: are considered as the original and major subject of international law and their legal personality derived from the system structure.
- All states enjoy equal rights and international legal personalities.

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- The international organization is mainly concerned with the rights, duties of each state and due to which the international organizations lay down rules which every state observes and follows.
- 2) **International Organizations**: are an association of different states which are formed with the help of a treaty or agreement between different nations and its function goes beyond the states and deals with the conflict of nations.
- With the establishment and rise of international organizations in the early 19th century, the legal status of international organizations in international law is questioned.

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- But, the status of international organizations is determined to be a convention among the states.
- 3. **Non-State Entities**: are those types of entities that are not registered as an independent state and also not have a legal status like the states have.
- They have a special type of personality in international law.
- Even though they are not registered as an independent state they have the right to participate international conferences and in every treaty.

Continued

- But one thing more that differs it from the states is that the non-state entities, the rights and duties of non-state entities are not similar to the state and their functions and power were also limited as compared to the state.
- They existed for a particular function and this reason is considered for the limitation of rights and duties of non-state actors.
- *Member of the composed states or federal states, insurgents and belligerents, national liberation movements, international territories are non-state entities.*

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4. **Special Case Entities**: are granted special or unique status under international law.
 - **They are the Sovereign Order of Malta, the Holy See and the Vatican City.**
 - The Sovereign Order of Malta was established during the time of crusades as a military and medical association.
 - The Holy See and the Vatican City: is the international legal person of the Roman Catholic Church and its location is set in the Vatican City in Rome.

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5. **Individuals**: are always the main concern of international law and the growth of positivist theories of law darkens the concern for human beings but in the 20th century again the international law became concerned for individuals.
- During the WWII, the trend comes in international law which is concerned in blaming and attaching direct responsibilities to the individuals for crimes committed against the peace and security.

Continued

6. **Minorities**: are the next concern along with the concern of individuals during the 20th century.
 - The serious and major problem which comes out after the WWI is to protect minorities in Europe.
 - The League of Nations assumed its responsibilities in the field of treaty based protection of minorities in Europe in social aspects such as education, health and fair labor standards.
7. **Indigenous People**: it is a special issue that came under international law.

Continued

- Despite so many attempts of the United Nations to recognize group rights to indigenous people, nothing changed and it is still considered as a specific category of minorities with special needs.
- **Major Theories**
- There are different theories with regard to the subjects of international law.
- The major one are:

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1. Realist Theory:

- *According to them the only and ultimate subject of international law is the nation states.*
- They believe that the nation states are the only entities for whose conduct the international law comes into existence.
- The nation states are separate legal entities and have their own rights, duties and obligations which they can possess under international law.

Continued

2. Fictional Theory:

- **According to them, the only subjects of international law are the individuals not the nation states.**
- The reason behind this is the legal orders are for the conduct of human beings and for their wellness.
- And there is nothing much difference between nation states and an individual because nation states are the aggregate of individuals.

Continued

3. Functional Theory:

- ***It tends to meet both the extremist theories (realist and fictional theories).***
- According to it, neither nation states nor individuals are the only subjects of international law.
- Other entities have been granted international personality and status in addition to states and individuals and considered as subjects of international law.

The State System

- ***Creation of State: Statehood and Self-determination:***
- Those are related words with statehood:
 1. Nationhood
 2. Sovereignty
 3. Self-government
 4. Self-rule and
 5. Self-determination
- The process of creating new states is a mixture of fact and law, involving the establishment of particular factual conditions and compliance with pertinent rules.

Continued

- The accepted criteria of statehood were laid down in the Montevideo Convention (1933), which provided that a state must possess:
 1. Permanent Population
 2. Defined Territory
 3. Effective Government
 4. A capacity to enter into international relations
- *The first two elements constitute the physical or material basis of the state while the last two form its political and spiritual basis.*

1. Permanent Population

- The state is a human institution.
- So population is its primary element.
- There is no hard and fast rule about population.
- The ancient Greek writers like Plato and Aristotle favored a small population.
- According to Plato, an ideal state should have a population of 5040.
- Aristotle laid down a general principle that the population of a state should be large enough to make it sufficient and small enough to make good government possible.

Continued

- *It must be remembered that both of them were thinking in terms of small city-states.*
- In modern times, *Rousseau*, prompted by considerations of direct democracy, fixed the number at *10,000*.
- In modern times, states vary greatly from the few thousands of people in Monaco or San Marino to China and India.
- The modern tendency is in favor of large states.

2. Defined Territory

- A definite and more or less permanent territory is also regarded as an essential element of state.
- In modern times, the citizens are bound together by residence on a common territory.
- Land, water and air space comprise the territory of a state.
- As in population, so in territory, no limit can be laid down.
- Small states and large ones exist side by side.
- There are tiny states like San Marino with an area of less than twenty five square miles.

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- On the other hand, there are giant states like the Russian Republic, China, USA and Australia with millions of square miles.

3. Effective Government:

- A people occupying a definite territory cannot form a state unless they are politically organized. i.e. unless they possess a government.
- Government is the political organization of the state.
- It is the concrete and visible instrument of state power.

Continued

- According to Garner, government is the agency through which common policies are determined and by which common affairs are regulated.
- The state's wills and acts are known through the government.
- Government must be effective; it must possess the capacity to maintain order and enforce obedience.
- Without a government there would be lawlessness and anarchy and ultimately the state would be dissolved.

Continued

- Government consists of three organs, namely, legislature, executive and judiciary.
- The legislature makes laws; the executive enforces laws while the judiciary adjudicates cases or disputes.
- There are different kinds of government in different states such as monarchy, democracy and dictatorship.
- Most of developed states are democracies.
- Many developing countries including India have democratic governments.
- Whatever may be the form of government, one thing is clear-there can be no state without effective government.

4. *Capacity to enter into International Relations*

- A state shall have a capacity to enter into international relations or all activities between states such as war, diplomacy, trade, and foreign policy and relations with other international actors such as intergovernmental organizations (IOGs), international non-governmental organizations (INGOs), International legal bodies and multinational corporations (MNCs).
- A state shall be competent to do those activities.
- The practice or the fact is different.

Continued

- The need for a permanent population and a defined territory is clear, though boundary disputes-e.g. *those concerning Albania after WWI and Israel in 1948-do not preclude statehood.*
- The international community (including the UN) has recognized some states while they were embroiled in a civil war (e.g. *the Congo in 1960 and Angola in 1975*), thus eroding the effective government criterion.
- *Croatia and Bosnia and Herzegovina* were also recognized as new states by much of the international community in 1992, though at the time neither able to exercise any effective control over significant parts of its territory.

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- Although independence is required, it need not be more than formal constitutional independence.
- **International Recognition**
- In modern times relations among nations have grown and many international organizations and institutions have come into being.
- Therefore, some scholars have argued that international recognition be an essential element of state.

Sovereignty

- By far the most important characteristics of the state is its sovereignty.
- If it fulfills the above criterias it is sovereign.
- It is the characteristic which distinguishes the state from all other associations.
- It denotes the supreme power or the final authority from which there is no appeal.
- Sovereignty has two aspects, *internal and external*.
- Internally viewed, the state has supreme power over all individuals and associations within its fixed area.

Continued

- It can compel obedience of its people to its laws and commands.
- Externally viewed, the state is free from control of any foreign state or alien rule.
- ***It should be noted, however, that absolute sovereignty is a legal concept.***
- In actual practice no state is able to exercise unlimited power either over individuals and associations within its territorial domain or in its international relations.

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- A state respects and abides by international laws, treaties and the policies of the international organizations like the UN and its agencies.
- **Recognition of States**
- Recognition of state under international legal system can be defined as the formal acknowledgment or acceptance of a new state as an international personality by the existing state of the international community.
- It is the acknowledgment by the existing state that a political entity has the characteristics of statehood.

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- The international community is the community of sovereign states at an international platform.
- For any state to enjoy the rights, duties and obligations of international law and to be a member of the international community, recognition of the entity as a state is very important.
- Only after recognition of the entity as a state, it becomes acknowledged by other states who are a member of the international community.
- International law considers the act of recognition as an independent act of the existing statehood community.

Essentials

- The main essentials of recognition may be given as under Article 1 of the Montevideo Convention.
- In other words the attributes of statehood are people, territory, government and sovereignty.

- *Theories of Recognition*

- 1. *Constitutive Theory:*

- Oppenheim, Hegal and Anzilotti are the chief exponents of this theory.
 - According to this theory, the only certificate to issue international personality to a new born state is the consent of the already existing states.

Criticism

- The theory has severely been criticized by a number of jurists.
- Because, at first instance that states do not seem to accept recognition as a legal duty.
- And at the second instance, it creates many difficulties when a community claims of being a new state and its non-recognition will, according to this theory, imply that it has no rights, duties and obligations under international law.

2. Declaratory Theory

- The chief exponents of this theory are Hall, Wagner, Fisher and Brierly.
- According to this theory, the statehood or the authority of new government is not dependent on the consent of the existing state but is based on some prior or existing condition or criteria.
- According to them, the recognition by the existing states is merely a formal acknowledgement of the statehood and not the condition.
- In fact the statehood is dependent on some prior conditions necessary for an entity to be called as a state

Criticism

- This theory has also been criticized, because it is not correct that in all cases the existing fact shall imply the statehood, rather sometime the statehood may be constitutive.
- ***Modes of Recognition***
- There are two modes of recognition which may be given:
 1. De facto Recognition
 2. De jure Recognition

1. *De facto Recognition*

- States provisionally grant; that is subject to fulfillment of all the attributes of statehood, of recognition to a new state which has acquired sufficient territory and control over the same, but the recognizing states considers it not stable more, is said to be de facto recognition.

2. *De jure Recognition*

- The grant of recognition to a new born state by an existing state, when it considers that such new born state has attained all the attributes of statehood with stability and permanency is called de jure recognition.

Differences between De facto and De jure Recognition

- De facto and de jure recognition may differentiate on the basis of the following points of distinction.
 - 1) De facto recognition is **provisional recognition** subject to fulfillment of all attributes of statehood.
 - De jure recognition is **absolute recognition** granted to a state which have attained all the attributes of statehood, possesses sufficient control with permanency.
 - 2) De facto recognition creates **few essential rights and duties** for recognized and recognizing states.

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- De jure recognition creates **absolute rights** for the parties thereto.
- 3) De facto recognition **does not create full diplomatic intercourse** between the parties.
- De jure recognition creates **full diplomatic intercourse** between the parties.
- 4) The **full diplomatic immunities are not granted** in this de facto recognition
- In de jure recognition, **limitations are not necessary**.

Forms of Recognition

1. *Express Recognition*

- The declaration or notification by an existing state which purports the intention to recognize a newly born state, the recognition is said to be express recognition.
- In other words, when ***a formal and express declaration or statement*** is made and published or sent to the opposite party, the recognition is said to be express recognition.

2. *Implied Recognition*

- When the existing state shows its intention of recognition of a newly born state by some acts, the recognition is said to be implied recognition.

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- In other words, in case of implied recognition no formal statement or declaration to be made, rather the intention of recognition is to be collected by the acts of the existing state.
- So, if such acts purport intention of recognition, it is said to be implied recognition.

3. Conditional Recognition

- The grant of recognition by an existing state to a newly born state stipulated on fulfillment of some conditions in addition to the requirements of statehood is said to be conditional recognition.

Continued

- As for as, the recognition is concerned it is itself conditioned with the fulfillment of the essentials of statehood, that is to say, the new state must occupy some territory, has some population, government and sovereignty.
- If these requirements have been complied with by the new state, then that should be recognized by existing states.
- *But as for as, the recognition is concerned it is usually based on some political considerations.*

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- So, in the pursuance of these considerations the existing states sometimes declare recognition but stipulated with certain other conditions for the recognized state to be fulfilled.
- **Criticism**
- Many jurists have criticized conditional recognition.
- According to them, recognition is a legal matter and it should not be accompanied with conditions other than required by law.

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- That is why in case of conditional recognition the recognized state if did not fulfill the prescribed condition the recognition shall be valid and not extinguished.
- Rather, it will affect the relations between the recognized and recognizing states.

4. Collective Recognition:

- It is an act of recognition through international decision.

Continued

- Membership in the UN is one of the criteria for granting recognition in a collective form.
- However, member states are free to use their own will and they are not bound by the decisions of the UN.
- They can decide as to whom to give recognition.
- **Withdrawal of Recognition**
- It may be explained as under:

Continued

- **Withdrawal of De facto Recognition:**
- It is possible under international law only on the ground that the recognized state has been failed to fulfill the pre requisite condition for statehood.
- In such a case, the recognizing state may withdraw from the recognition by communicating a declaration to the authorities of recognized states or by a public statement.
- **Withdrawal of De jure Recognition:**
- There are different views about the withdrawal of de jure recognition.

Continued

- According to the strict letters of international law and by the virtue of some conventions in this behalf, it is evident that the withdrawal of de jure recognition is not valid in any case.
- Though recognition is a political act, de jure recognition by nature and status is a legal oriented.
- But some jurists think that de jure recognition may be withdrawn, because it is a political act.
- But it is not so.

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- Only those de jure recognitions may be withdrawn where a state subsequently loses any essential of statehood.
- In such case, the state withdrawing from recognition shall send its express intention to the concerned authority or issue a public statement to that extent.
- **Recognition of Government**
- As we know that government is an essential part of statehood.
- By government it is meant the administrative and controlling tool of a state.

Continued

- Once a state comes into being, its government may change from time to time.
- If the change of government takes place in ordinary political life, the existing states are not required to recognize the new government.
- But sometimes the change of a government takes place as a result of a revolution.
- In such a case, it becomes necessary to ascertain that whether this new revolutionary government is;
 1. Capable of having sufficient control over the people of the territory or not and

Continued

2. Willing to maintain international responsibilities and duties or not.
- So, if the existing states consider that this new government is capable of fulfilling the above conditions then the new government may be recognized.
 - The recognition of new regime means that the existing states are satisfied that the new government has a capacity to control and is willing to perform international duties and obligations.

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- The recognition may be either *de facto or de jure*.
- And the intention may be expressed either by sending a message to the authority of the new government or to declare the same in a public statement.
- *The modern practice is seemed to reject the doctrine of recognition of new government.*
- Now, some states as USA and UK and others have adopted a course to give assent to the above pre conditions for a government merely by extending relation or cessation of relations with such government.

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- **Non-recognition of government does not affect the recognition of a state.**
- A state remains recognized.
- The only consequence of the non-recognition of the new revolutionary government is the suspension of the bilateral relations between the existing state and the new government.
- **The Legal Effect of Recognition of Government**
- The consequences of the recognition of a new government means to keep the relations in the same manner as were with the previous government.

Doctrines for the State Recognition of Government

1. Tobar Doctrine (No Recognition for Unconstitutional Governments):

- Named after Carlos Tobar, Foreign Relations Minister of Ecuador, the doctrine states that; recognition of government should only be granted if its administration came to power by legitimate democratic means.
- It was primarily adopted by Central American States in 1907.
- Later recognition of the US to this doctrine turned it to be known as Wilsonian Policy.

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- The US applied it in Tinoco government of Costa Rica.
- *The doctrine never worked outside Americas.*
- 2. *Estrada Doctrine (Recognize the Existence of Government not its Legitimacy):*
 - Named after Mexican Secretary of Foreign Affairs, Genaro Estrada, the doctrine states that; *recognition of government should be based on its de facto existence rather than on its legitimacy.*
 - *This policy is based on the principles of non-intervention and self-determination of all states.*

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- The principle does not allow the states to assess the legitimacy of governments of other states.
- **Premature Recognition:**
- This kind of recognition is granted by a third state or government to emerging insurgents.
- It is given to those who have not even got the permanence of statehood.
- It is an unfriendly act towards the standing government.
- It is an act of intervention rather than an act of recognition.

Continued

- *It amount to intervention in a state's internal affairs, a violation of one of the fundamental principles of international law.*
- *Legal Effects of Recognition of State*
- When a state acquires recognition, it gains certain rights, obligations and immunities such as:
 1. It acquires the capacity to enter into treaties with other states.

Continued

3. The state is able to enjoy the rights and privileges of international statehood.
4. The state can undergo state succession.
5. With the recognition of state comes the right to sue and to be sued.
6. The state can become a member of the UN.

Extinction of Statehood

- According to international law a state becomes extinct with the disappearance of one of the criteria of statehood, either because it has physically ceased to exist or has merged into larger, or split up into smaller units, thereby removing the social foundation of former state.
- State extinct through:
 1. **Merger**: two or more states may be combined to form one state. E.g. Tanganyika and Zanzibar merged to form Tanzania

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2. **Dissolution/Dismemberment**: takes place when its territory becomes the territory of two or more new states.
 - Consequently, the predecessor state ceases to exist.
 - The newly formed states are regarded as its successors.
 - E.g. USSR dissolved into 15 new states.
3. **Secession**: a phenomenon of secession is debatable.
 - Some scholars followed a broad notion of secession, including in their analyses **of all cases of separation of states in which the predecessor state continues to exist in a diminished territorial and demographic form.**

Continued

- **Situations of dismemberment of states, in which the predecessor state ceases to exist, were also envisaged.**
- The case of the Socialist Federal Republic of Yugoslavia obviously attracted much scrutiny, in particular with regard to its legal qualification as a case of secession or dissolution.
- **Other scholars also considered situations related with the process of decolonization.**
- Other scholars consider secession as a creation of a new independent entity through the separation of part of the territory and population of an existing state, without the consent of the latter.

Continued

- According to them, it can also take the form of the separation of part of the territory of a state in order to be incorporated as part of another state, without the consent of the former.
- According to them, when a new state is formed from part of the territory of another state with its consent, it is a situation of devolution rather secession.
- This presupposes an agreement between both entities and, as such, is not a source of conflict, at least with regard to the existence of the new state itself.

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- According to them, the lack of consent of the predecessor state is the key element that characterizes a strict notion of secession.
- At the same time, this factor explains why secession is so controversial in international law.
- **State Succession**
- The topic succession under public international law is an extremely complex one, being attempted to encode all succession situations.
- In this regard, within the **UN International Law Commission, were negotiated and adopted two multilateral treaties aiming to identify and regulate the general trends used in practice in terms of solving various situations of state succession.**

Continued

- These are the *Vienna Convention on Succession of States in respect of treaties, 1978* and
- *Vienna Convention on Succession of States in respect of State Property, Archives and Debts, 1983*.
- The latter though, so far, has not fulfilled the required number of ratifications to enter into force.
- Those conventions have the merit to establish the first definition of succession under international law according to which, *“succession of states means the replacement of one state by another in the responsibility for international relations of territory”*.

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- A succession of state occurs when one or more state take place of another state fully or partly and all the rights and responsibilities also transfer during the succession.
- The definition expressed coincide thus with what was stated also before in doctrine, by succession occurring a substitution of the exercise of sovereignty of a state with another, on a certain territory.
- ***The rule of state succession was incorporated by Grotius.***

Continued

- In Roman law, when a person dies his rights and duties are succeeded by his successors.
- This principle was applied by Grotius in the international law as well.
- **Types of State Succession**
 1. **Universal Succession**
 - **This is also referred to as total succession.**
 - When the entire identity of the parent state is destroyed and the old territory takes up the identity of the successor state, it is known as universal succession.

Continued

- This can happen in cases of:
- Merger
- Subjugation
- Annexation
- Dissolution
- **Partial Succession**
- ***It occurs when a part of the territory of the state gets severed from the parent state.***
- This severed state now becomes an independent state.
- This can occur when there is a civil war or a liberalization war.

Continued

- The existing states continued with their legal obligations and duties while the new states got their own recognition and carried out no rights or duties of parent states.
- **The Principles of State Succession**
 1. **Replacing the international legal order** – refers to the fact that regardless of how a territory changes, within that territory, the legal order of the predecessor state shall be replaced with the legal order of the successor state;

Continued

2. **The Principle of Sovereignty** – the successor state is not continuator of predecessor state's sovereignty, each one having its own international legal personality;
3. **The decisions are not compulsory** – the successor state does not remain bound by previous decisions taken by the predecessor state in international legal relations where it was a party;
4. The successor state is not obliged to completely replace in the international legal order established by the predecessor state.

Continued

- There may be an interest for the successor state in keeping certain elements of the old legal order, for e.g. maintaining certain international commitments;
- 5. While in case of merger and dismantling operates the continuity of treaties on the territory for which they were concluded or on the entire territory, in case of transfer, as a general rule, the treaties that have been concluded by the transferor state cease to have effect on the ceded territory, and only those concluded on the ceded territory shall remain valid.
- Also, a general rule political treaties disappear and the technical are kept.

Rights and Duties arising out of state succession

1. **Political Right and Duties**: No succession take place in respect of political duties and rights.
 - Hence, the succeeding state is not bound by the political treaties of the former state.
 - **State is not bound by the treaties of peace or neutrality entered by the extinct state.**
2. **Local Right and Duties**: when any succession take place local right and duties. i.e. right relating to **land, rivers, roads, railways etc.** also succeed from extinct (predecessor) state to succeeding state.

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- *PCIJ held that private rights do not end by the changes of sovereignty.*
- 3. *Fiscal Property Debts*: in state succession fiscal property debts also transferred from extinct state to successor state.
- 4. *Contracts*: when predecessor state entered into contract, succeeding state is entitled to decide whether it will accept the financial obligations of former state or not.
- *If it won't accept then it won't be liable.*

Continued

5. **Concessionary Contracts**: if the extinct state has granted certain concession like **the right to operate oil mines, laying of railways etc.** then such contract will be binding on succeeding state, because they are local nature.
- **But some writers/jurists argue that concessionary contracts are not binding on succeeding.**
6. **Laws**: succeeding state will have to decide whether the law will continue or not.
7. **unliquidated Damages for tort: compensation (damages) for unliquidated damages won't exist in state succession.**

Continued

8. **Nationality**: nationality of new state is gained and nationality of the predecessor state is lost.
9. **Succession to property in foreign state**: successor state will not only receive the property situated within the territory but also receive the property existing outside the territory which was belonging to predecessor state.
10. **Succession of state archives**: if no agreement is between the predecessor state and the successor state, the successor state should receive the part of the archives necessary for an efficient administration of the acquired territory and all other documents.

Predecessor State v Successor State

- “Predecessor state means the state which has been replaced by another state on the occurrence of a succession of state” (Art 2 (c) of the VCSST).
- “Successor state means the state which has replaced another state on the occurrence of a succession of states.
- *Clean slate succession (Tabula Rasa Approach)*
- The traditional customary rule on succession to treaties has generally been this: *a successor state has a ‘clean slate’ in respect of the treaties of its predecessor.*

Continued

- It thus had a choice whether or not to become a party to these treaties, by performing a notification of succession.
- *It automatically succeeded to treaties in rem or treaties that followed territory, such as border agreements, whether it wanted or not.*
- *But the continuator state by definition will remain a party to all treaties of its predecessor, because for all intents and purposes it is the predecessor.*

Continued

- *The traditional clean slate rule has been challenged by the 1978 VCSST.*
- The convention provides that a successor state will automatically succeed to all its predecessor's treaties (Article 34 (a)).
- Exceptionally, however, in case of newly independent states, defined basically as *former colonies* (but despite the name not as all new independent states) – Article 2 (1) (f), the clean slate rule would apply still apply (Article 16).

Continued

- *The Convention has not garnered much support from states, and has come into force only recently with a very small number of parties.*
- It is thus generally not considered to be reflective of customary law, especially in its abolition of the clean slate rule, or in its confinement solely to former colonies, a category that is now practically extinguished.
- Yet, even if the rule of automatic succession does not, as a matter of customary law, apply in all treaties, some have argued – among them foremost *the UN Human Rights Committee in General Comment No.26* – that this rule is applicable in to the category of human rights treaties, or more broadly speaking, treaties of a humanitarian character.

Continued

- Since these treaties are made to safeguard the inherent rights of individuals, so the argument goes, once these rights are recognized by treaty they can not simply disappear due to the succession of states, but must apply continuously.
- *Though the principle of automatic succession to human rights treaties is often treated as orthodoxy by human rights lawyers, it is in fact highly controversial and is not supported by much state practice.*